

9:00 A.M.

**Calendar Line # 2**

**Case Name** Marconi De Miranda vs Hermes Muniz et al

**Case No.** 24CV442613

**Motion for Leave to File**

**I. BACKGROUND**

On July 15, 2026, Defendant Hermes Muniz filed a motion for leave to file a cross-complaint.

On August 31, 2026, Plaintiff Marconi de Miranda filed a notice of conditional non-opposition indicating he will challenge the cross-complaint by way of a separate demurrer or other responsive pleading.

**II. LEGAL STANDARD**

Pursuant to Code of Civil Procedure section 473(a)(1), if a plaintiff wishes to amend a complaint after the answer has been filed or after the demurrer has been filed and after the hearing on the demurrer, or if he or she has already amended the complaint “of course,” permission of the court must be obtained before the amendment will be allowed. Motions for leave to amend the pleadings are directed to the sound discretion of the court. “The court may, in furtherance of justice, and on any terms as may be proper, allow a party to amend any pleading . . . .” (Code of Civ. Proc., § 473(a)(1); see Code of Civ. Proc., § 576). Policy favors liberally granting leave to amend so that all disputed matters between the parties may be resolved. (*Howard v. County of San Diego* (2010) 184 Cal.App.4th 1422, 1428). Absent prejudice to the adverse party, the court may permit amendments to the complaint “at any stage of the proceedings, up to and including trial.” (*Atkinson v. Elk Corp.* (2003) 109 Cal.App.4th 739, 761 [internal quotes omitted]).

While denial is rarely justified, a judge has discretion to deny leave to amend if the party seeking the amendment has been dilatory, and the delay has prejudiced the opposing party. (*Morgan v. Sup.Ct.* (1959) 172 Cal.App.2d 527, 530; see also *Hirsa v. Superior Court* (1981) 118 Cal.App.3d 486, 490). An opposing party is prejudiced where the amendment would necessitate a trial delay along with a loss of critical evidence, added preparation expense, increased burden of discovery, etc. (*Magpali v. Farmers Group, Inc.* (1996) 48 Cal.App.4th 471, 486-488).

The court will not consider the validity of the proposed amended pleading in ruling on a motion for leave since grounds for a demurrer or motion to strike are premature. However, the court, does have discretion to deny leave to amend where a proposed amendment fails to state a valid cause of action as a matter of law and the defect cannot be cured by further amendment. (*California Casualty General Ins. Co. v. Superior Court* (1985) 173 Cal.App.3d 274, 281 (overruled on other grounds by *Kransco v. American Empire Surplus Lines Ins. Co.* (2000) 23 Cal.4th 390)).

**III. ANALYSIS**

Here, Defendant Muniz filed a motion for leave to file a cross-complaint. The Plaintiff filed a non-opposition to the motion, reserving the right to challenge the cross-complaint by demurrer or other responsive pleading.

The Court finds that the leave to amend is appropriate and Defendant has satisfactorily demonstrated the effect of the amendment and why the amendment is necessary and proper. The Court also notes the longstanding policy favoring leave to amend.

**IV. CONCLUSION**

Based on the foregoing, the non-opposition, the Court GRANTS Defendant’s motion for leave to file a cross-complaint. The Court will prepare the formal Order.

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| <b>Calendar Line # 4</b>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                       |
| <b>Case Name</b> Maria Duran vs Paul Chavez et al                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                              |
| <b>Case No.</b> 25CV478033                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                     |
| <p><b>Motion to Set Aside/ Vacate Default Judgment</b></p> <p><b><u>I. BACKGROUND</u></b></p> <p>On October 24, 2025, Plaintiff Maria Duran (“Duran”) filed a Complaint against Defendant Paul R. Chavez - Chavez Law Firm (“Chavez”) alleging (1) breach of contract – legal service agreement, (2) breach of contract – personal loan in the amount of \$71,500.00, and (3) fraud, misrepresentation, and rule 9.20 violations. (Complaint, p. 1-2).</p> <p>On January 12, 2026, a basic default was entered against Defendant Chavez in the amount of \$65,200.00.</p> <p>Before the Court is Defendant’s motion to set aside and vacate the default judgment as handwritten on the caption (the footnote erroneously states “INSERT DOCUMENT TITLE (e.g. MOTION TO STRIKE).” The two page motion was filed on January 27, 2026. The motion was not accompanied by a proof of service, notice, or memorandum of points and authorities.</p> <p>On September 4, 2026, Plaintiff Duran filed an Opposition to Defendant’s motion to set aside the default.</p> <p>The Court has carefully reviewed the following: Defendant’s motion (totaling 2 pages); Plaintiff’s Opposition (totaling 16 pages); and the pleadings.</p> <p><b><u>II. PROCEDURAL VIOALTIONS</u></b></p> <p>The Court notes that even if it overlooks the wrong footnote of the present motion, which the Court understands is Defendant Chavez’s motion to set aside/vacate the default judgment, there are substantial procedural violations. First, there is no noticed motion as required under California Code of Civil Procedure section 1005(a) and Rules of Court, rule, 3.1112(a). Even if the Court takes the caption that lists the motion date as September 24, 2026 at 9:00 a.m. in Department 1, there is no proof of service, which is required under Code of Civil Procedure section 1005, which provides in pertinent part that, “[u]nless otherwise ordered or specifically provided by law, all moving and supporting papers shall be served and filed at least 16 court days before the hearing.”</p> <p>Further, the motion is not accompanied by a required memorandum of points and authorities, as required under Rules of Court, rule 3.1113.</p> <p>The body of the motion does not include a separate Declaration, but provides a signed statement from Defendant Chavez stating that that due to facing major health issues, including hospitalizations for congestive heart failure and Pagett’s disease, he was unable to file an answer or respond to the Complaint. (Defendant’s motion, p. 1). No exhibits were produced.</p> <p><b><u>III. ANALYSIS</u></b></p> <p>Due to the procedural violations for failure to: provide proper notice, provide proof of service, and include a memorandum of points and authorities, the Court cannot reach the merits of the motion. (Rules of Court, rule 3.1112-3.1113; Code of Civil Procedure section 1005). Plaintiff opposes the motion on the ground she did not receive proper notice.</p> <p><b><u>IV. CONCLUSION</u></b></p> <p>Based on the foregoing, the motion is DENIED. The Court will prepare the formal Order.</p> |